



CHAPTER xlviii.

An Act to authorise the construction of a reservoir by means of a dam across the Afon Ddu and the taking of water by the Conway and Colwyn Bay Joint Water Supply Board and by the Aluminium Corporation Limited for power purposes and for other purposes.

A.D. 1916.

[17th August 1916.]

WHEREAS under the Conway and Colwyn Bay Joint Water Supply Board Act 1908 (hereinafter referred to as "the Act of 1908") the construction by the Conway and Colwyn Bay Joint Water Supply Board (hereinafter referred to as "the Board") of the embankment or dam therein described across the outlet of Lake Cowlyd in the county of Carnarvon was sanctioned and confirmed and the Board were authorised to collect impound take use divert and appropriate from the said lake all the water they may from time to time require for the purposes of their statutory obligations:

And whereas by section 5 of the Act of 1908 the Board are for the protection of the Aluminium Corporation Limited (hereinafter referred to as "the Corporation") under obligation to discharge into the Afon Ddu compensation water as in that section mentioned:

And whereas the Corporation use the said compensation water with other water for power for the purposes of their business:

And whereas by reason of the urgent demand for supplies of aluminium for and in connexion with the manufacture of munitions of war it is expedient that the Corporation should increase their output and for this purpose the Corporation require additional water power:

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And whereas the only source from which additional water power can be obtained is from the said lake and the Afon Ddu and with a view to providing additional water power an agreement dated the twenty-seventh day of May one thousand nine hundred and sixteen has been entered into between the Board and the Corporation whereby the Corporation are inter alia to make a reservoir to be formed by enlarging and extending the said lake by means of a dam across the Afon Ddu as in this Act described and to take therefrom water for the purposes of the said additional water power in lieu of the compensation water mentioned in section 5 of the Act of 1908:

And whereas the works of the Corporation are situate in the parish of Dolgarrog and the Corporation's employees live chiefly in such parish and the Corporation's manager lives at "Plas Maenan" in the parish of Maenan and it is one of the terms of the said agreement that the Board shall supply water in the said parish of Dolgarrog and to the said house and it is expedient to extend the district of the Board as in this Act provided:

And whereas it is expedient that the said agreement should be confirmed and that the other provisions in this Act contained be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Carnarvon and are hereinafter respectively referred to as the deposited plans sections and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title
and citation
of Acts.

1. This Act may be cited as the Conway and Colwyn Bay Joint Water Supply Board Act 1916 and the Conway and Colwyn Bay Joint Water Supply Orders 1891 to 1898 the

Conway and Colwyn Bay Joint Water Supply Board Act 1908 A.D. 1916.
and this Act may be cited together as the Conway and Colwyn
Bay Joint Water Supply Board Acts 1891 to 1916.

2. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely):— Incorporation of Acts.

The Lands Clauses Acts:

The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof Provided that in construing the provisions of that Act for the purposes of this Act the expressions "the railway" "the work" and "the centre of the railway" shall respectively mean the embankment or dam by this Act authorised and the centre line thereof:

The provisions of the Waterworks Clauses Act 1847 with respect to the following matters (that is to say):—

The construction of the waterworks;

The construction of works for the accommodation of lands adjoining the waterworks;

Mines.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated with this Act or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires— Interpretation.

"The Board" means the Conway and Colwyn Bay Joint Water Supply Board;

"The Corporation" means the Aluminium Corporation Limited;

"The Act of 1908" means the Conway and Colwyn Bay Joint Water Supply Board Act 1908;

"The Order of 1891" "the Order of 1896" and "the Order of 1898" mean respectively the Conway and Colwyn Bay Joint Water Supply Board Orders 1891 1896 and 1898;

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“The reservoir” means the reservoir by this Act authorised;

“The dam” means the embankment or dam by this Act authorised for forming the reservoir and all works incidental thereto;

“The scheduled agreement” means the agreement dated the twenty-seventh day of May one thousand nine hundred and sixteen made between the Board of the one part and the Corporation of the other part and set out in the schedule hereto;

“The date of completion” means the date on which the dam shall have been completed by the Corporation to a height of not less than thirty feet in accordance with the provisions of this Act and the scheduled agreement.

Power to
make works.

4. Subject to the provisions of this Act the Corporation may wholly in the county of Carnarvon and in the lines and situation and upon the lands delineated on the deposited plans and described in the deposited book of reference make the following work shown on the deposited plans and sections (that is to say):—

A reservoir to be formed by enlarging and extending Lake Cowlyd by means of an embankment or dam three hundred and fifty yards or thereabouts in length partly in the parish of Dolgarrog in the rural district of Conway and partly in the parish of Llanrhychwyn in the rural district of Geirionydd situate across the River Afon Ddu at a point three hundred yards or thereabouts measured in a straight line in a north-easterly direction from the centre line of the existing embankment or dam described in and sanctioned and confirmed by the Act of 1908.

In addition to the foregoing work the Corporation may upon the said lands make all such cuts channels catchwaters tunnels adits pipes conduits culverts drains sluices byewashes bores overflows waste-water channels gauges tanks banks walls bridges embankments piers approaches engines machinery and appliances and any alterations in the works sanctioned and confirmed by the Act of 1908 as may be necessary or convenient in connexion with or subsidiary to the before-mentioned work but nothing in this section shall exonerate the Corporation from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them.

5. In the construction of the works authorised by this Act the Corporation may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding five feet upwards and to any extent downwards Provided as follows (that is to say):—

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 Limits of
 deviation.

The Corporation shall not construct the dam of a greater height above the general surface of the ground than that shown on the deposited sections in respect of the corresponding embankment or wall and five feet in addition.

6. If the dam is not completed to a height of not less than thirty feet within three years from the passing of this Act then on the expiration of that period the powers by this Act granted for the making thereof or otherwise in relation thereto shall subject to the provisions of the section of this Act whereof the marginal note is "Corporation may bring water from other watersheds and increase height of dam" cease except as to so much thereof as shall then be completed.

Period for
 completion
 of works.

7. Subject to the provisions of this Act the Corporation may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for the purposes of the works by this Act authorised Provided always that the Corporation shall not purchase and take the lands numbered 1 and 2 on the deposited plans in the parish of Llanrhychwyn and 1 and 2 in the parish of Dolgarrog but they may enter upon and use such lands for all the purposes of the scheduled agreement and this Act.

Power to
 acquire
 lands.

8. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of one year from the passing of this Act.

Period for
 compulsory
 purchase of
 lands.

9. If there be any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county of Carnarvon for the correction thereof and if it appear to the

Correction of
 errors in
 deposited
 plans and
 book of
 reference.

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A.D. 1916. justices that the omission mis-statement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the clerk of the peace for such county and a duplicate thereof shall also be deposited with the clerk of the council of the district in which the lands affected thereby are situate and such certificate and duplicate respectively shall be kept by such clerks respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Corporation to take the lands and execute the works in accordance with such certificate.

As to private rights of way over lands taken compulsorily.

10. All private rights of way over any lands which shall under the powers of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished Provided that the Corporation shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Power to agree as to drainage of lands &c.

11. The Board may make and carry into effect agreements with the owners lessees or occupiers of any lands within the drainage area of the reservoir with reference to the execution by the Board or such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters by this Act authorised to be diverted collected and appropriated by the Board flowing to upon or from such lands directly or derivatively into the reservoir.

Scheduled agreement confirmed.

12. The scheduled agreement is hereby confirmed and made binding on the parties thereto.

Completion of works by Corporation vesting same in Board &c.

13.—(1) Subject to the provisions of this Act and subject to and in accordance with the provisions of the scheduled agreement the Corporation shall construct the dam and may construct and maintain in the dam an outlet therein for taking water from the reservoir as in this Act and the scheduled agreement provided.

(2) As from the date of completion the works by this Act authorised together with the lands acquired by the Corporation for the purposes thereof (except superfluous lands) shall be transferred to and vested in the Board and subject to the provisions of the scheduled agreement held used and enjoyed by them as and shall for all purposes be deemed part of their existing works and water undertaking Provided always that the dam shall be maintained by the Corporation to the satisfaction of the Board in accordance with the provisions of the scheduled agreement. A.D. 1916.

(3) For the purpose of completing the title of the Board to the works and lands hereby transferred to them this Act shall be deemed to be a conveyance by the Corporation to the Board.

14. As from the date of completion the Corporation may in accordance with the provisions of the scheduled agreement (a) supply water to the reservoir and (b) for and in connexion with such purpose at any time increase the height of the dam in such manner as the Corporation shall decide Provided always that the Corporation shall not under this section increase the height of the dam beyond the limits of vertical deviation authorised by this Act. Corporation may bring water from other watersheds and increase height of dam.

15. Subject to the provisions of this Act and of the scheduled agreement the Board may as from the date of completion collect impound take use divert and appropriate from the reservoir all the water they may from time to time require for the purposes of supplying water within their area of supply for the time being and for any other purpose of the Conway and Colwyn Bay Joint Water Supply Board Acts 1891 to 1916 and all such springs streams and waters as may be intercepted by the reservoir or conveyed thereto by the Corporation. Power to Board to take waters.

16. The Board shall not construct any works for taking or intercepting water from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in this or some other Act of Parliament. Limiting powers of Board to abstract water.

17. As from the date of completion section 5 (For protection of Aluminium Corporation Limited) of the Act of 1908 is hereby repealed and as from such date the Corporation may take use divert and appropriate water from the reservoir in Repeal of section 5 of Act of 1908 and power to Corporation to take water from Lake Cowlyd.

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Saving for
rights of
Board.

18. Nothing in this Act or the scheduled agreement contained shall prejudice or affect the property rights and interests of the Board in Lake Cowlyd and as and from the date of completion the Board shall have and enjoy subject to the provisions of this Act and of the scheduled agreement the like property rights and interests in the reservoir as they now possess and enjoy in Lake Cowlyd.

Extension of
district.

19. Schedule B. to the Order of 1898 shall be altered by adding to the column 1 thereof after the word "Penrhyn" the words "and Dolgarrog" and the Orders of 1891 1896 and 1898 shall be read and have effect accordingly.

Power to
supply "Plas
Maenan."

20. The Board may and shall as in the scheduled agreement provided supply water to the house known as "Plas Maenan" in the parish of Maenan in the said rural district of Geirionydd and may for the purposes of such supply exercise in the parish of Maenan the like powers of laying mains and pipes as they are for the time being authorised to exercise in the joint district of the Board Provided always that for the period of twenty-one years from the passing of this Act the charge for such supply shall be twenty-one shillings per annum and after the expiration of the said period of twenty-one years the Board may demand and recover such rates and charges for such supply of water as may be agreed between the Board and the Corporation or failing agreement as may be settled by arbitration under the Arbitration Act 1889.

For protec-
tion of Cor-
poration.

21. Before the sanction of the Local Government Board has been given to any agreement under Article XXI. of the Order of 1891 or the making by them of any order under Article X. of the Order of 1896 the Corporation shall have the right to submit to the Local Government Board for their consideration any objections the Corporation may entertain either to the granting of such sanction or to the making of such order and notice shall be given in writing by the Board to the Corporation of its intention to apply to the Local Government Board for any such sanction or order as aforesaid.

For protec-
tion of Dol-
garrog
Estate.

22. For the protection of the trustees under the will of George Cooper or other the owner or owners for the time being of the Dolgarrog Estate (all of whom are in this section

included in the expression "the owners") the following provisions shall unless otherwise agreed between the owners and the Board or the Corporation as the case may be apply and have effect (that is to say):— A.D. 1916.

(1) Notwithstanding anything contained in this Act the covenants on the part of the Board contained in an indenture of the seventh day of October one thousand eight hundred and ninety-two and made between the Right Honourable Gilbert Henry Heathcote Drummond Willoughby Earl of Ancaster Baron Willoughby de Eresby and Baron Aveland of the first part Edgar Atheling Drummond Reginald Augustus Warren and the Right Honourable Peter Robert Baron Gwydyr of the second part the Honourable Frederick George Wynn of the third part and the Board and the Conway Union Rural Sanitary Authority of the fourth part to maintain the works therein referred to at all times in an efficient condition and to be responsible for all damage caused by the exercise of the rights by the said indenture granted and the covenants on the part of the Board contained in an indenture dated the twenty-seventh day of December one thousand eight hundred and ninety-two and made between the Honourable Frederick George Wynn of the one part and the Board of the other part so far as the same respectively affect and are applicable to or in respect of the several parts of the Dolgarrog Estate referred to in the said indentures respectively and now belonging or reputed to belong to the owners as the successor in title of the Earl of Ancaster Lord Willoughby de Eresby and Lord Aveland and the Honourable Frederick George Wynn respectively shall remain in full force and effect and enure for the benefit of the owners and so far as regards the said first-mentioned covenants shall enure in respect of the said works as sanctioned confirmed varied altered or extended by or in pursuance of the Act of 1908 and this Act:

(2) The Board shall for ever hereafter maintain a good and sufficient fence for cattle and sheep so as to separate the lands and property of the Board from

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those of the owners on the eastern side of the portion thereof known as the Brwynog Ucha Farm :

- (3) Notwithstanding anything contained in this Act there shall always be maintained by the Board in the River Afon Ddu out of the compensation water discharged into that river by the Board in pursuance of the Act of 1908 where it adjoins or abuts upon the Dolgarrog Estate of the owners a reasonable quantity of unpolluted water sufficient for watering cattle and for agricultural and domestic purposes only for the use of the owners their tenants and servants and all other persons authorised in that behalf by them :
- (4) The Corporation shall if and when required by the owners make and for ever thereafter maintain on the estate of the owners a good and sufficient fence for sheep and cattle along the south-eastern bank of the River Afon Ddu extending for a distance of about two thousand one hundred and fifty yards from a point opposite the intake of the Corporation near Brwnog Isaf to the footbridge over the said river leading from Ty-Isa Ardda to Cae-Celyn and Tyddyn Gwilym :
- (5) The Corporation shall erect construct and maintain all such fences for cattle and sheep and all such watering-places in the bed of the said River Afon Ddu and all such works and conveniences for preserving the efficient surface-water drainage of the Dolgarrog Estate as at present drained as from time to time may be agreed between the owners and the Corporation or failing agreement determined by an arbitrator to be reasonably necessary :
- (6) The Corporation shall as and when water is passing down the said River Afon Ddu supply water by agreement in bulk to the owners or their lessees or tenants for use in connexion with the Dolgarrog Estate at such point in the said river and on such terms and conditions as from time to time may be agreed between the owners and the Corporation or failing agreement determined by an arbitrator to be reasonable Provided always that such supply shall be

at all times forthwith returned by and at the expense of the owners unpolluted into the Cowlyd Leet of the Corporation for use by the Corporation in their works: A.D. 1916.

(7) Any difference which shall arise between the owners and the Board or the Corporation under this section shall be determined by an arbitrator to be agreed upon or failing agreement to be appointed on the application of either party by the President of the Surveyors' Institution and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such arbitration:

(8) Section 7 (For protection of George Cooper) of the Act of 1908 is hereby repealed.

23. Nothing in the Act of 1908 or in this Act contained shall prejudice or affect the rights of the Earl of Ancaster to require the Board to send down and discharge into the main stream of the Afon Ddu the quantity of water mentioned in an indenture dated the seventh day of October one thousand eight hundred and ninety-two and made between the Right Hon. Gilbert Henry Heathcote Drummond Willoughby Earl of Ancaster Baron Willoughby de Eresby and Baron Aveland of the first part Edgar Atheling Drummond Reginald Augustus Warren and the Right Hon. Peter Robert Baron Gwydyr of the second part the Hon. Frederick George Wynn of the third part and the Board of the fourth part nor prejudice or affect any subsisting right of the Earl of Ancaster under the said indenture Provided that the maximum quantity of water to be sent down the Afon Ddu by way of compensation water under the terms of the said indenture shall be one million five hundred and fifty-two thousand five hundred gallons during every day of twenty-four hours in lieu of and substitution for the provision contained in the said indenture for the sending down of the same quantity of water on every working day of twelve hours Provided also that the said maximum quantity of compensation water to be sent down the Afon Ddu under this section shall be in substitution for and not in addition to the quantity of compensation water to be sent down the Afon Ddu under the Act of 1908 and sections 4 and 5 of that Act shall be read and construed accordingly.

For protec-
tion of Earl
of Ancaster.

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Accommo-
dation for
workmen
employed on
construction
of works.

24.—(1) The Corporation shall erect fit up and maintain or provide—

(A) Such huts or buildings for the accommodation of the workmen employed in and about the construction of the works authorised by this Act;

(B) Such hospital accommodation for the treatment of cases of sickness or accident among such workmen including accommodation for dealing with infectious diseases;

as shall be reasonably necessary having regard to the accommodation available in the neighbourhood of or conveniently accessible from the said works and shall provide and maintain proper and sufficient sanitary accommodation in connexion with every such building and hospital.

(2) The Corporation shall pay all reasonable costs and expenses incurred in respect of the medical and surgical treatment of any workman employed on the construction of the said works who is treated in any hospital accommodation provided by them except in so far as such costs and expenses are payable under the provisions of the National Insurance Act 1911 or otherwise.

(3) The medical officer of health of the Carnarvon County Council shall be entitled at any time to enter into and inspect and examine any accommodation afforded under this section in order to ascertain whether overcrowding exists therein and whether proper and sufficient sanitary arrangements are provided.

(4) The Corporation shall give such officer all facilities and information which he requires for the purpose of the performance of his duties including the right to enter upon the said works and any person obstructing such officer in the performance of his duty under this section shall be liable on summary conviction to a fine not exceeding forty shillings.

(5) If at any time it appears to the Carnarvon County Council that the Corporation have failed to afford or maintain accommodation in accordance with subsection (1) of this section the Corporation shall afford and maintain such accommodation as the county council may require Provided that if within fourteen days after the receipt of notice of any requirement of the county council under this subsection the Corporation give notice to the county council that they dispute the reasonableness of any such requirement the difference shall be determined by the Local Government Board on the application of either of the parties to the difference and the Local Government Board may

make such requirements (if any) in variation of the requirements of the county council as they may think fit. A.D. 1916.

(6) If the Corporation fail to afford and maintain accommodation in accordance with the provisions of this section they shall be liable on summary conviction to a penalty not exceeding twenty pounds and to a further daily penalty not exceeding five pounds for every day on which the offence is continued after conviction and such penalties may be recovered by the county council.

(7) Any expenses incurred by the county council in carrying out the provisions of this section shall be repaid to the county council by the Corporation and shall be recoverable as a debt due from the Corporation to the county council.

(8) The Corporation shall pay to the Local Government Board any expenses incurred by that Board under this section including a sum not exceeding three guineas a day for the services of any inspector in connexion with any local inquiry or investigation which they may consider necessary in the exercise of their powers under subsection (5) of this section and the expenses of any witnesses summoned by the inspector.

25. The Corporation shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Corporation shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Corporation who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily.

Copy of
Act to be
registered.

There shall be paid to the registrar by the Corporation on such copy being registered the like fee as is for the time being payable under the Companies (Consolidation) Act 1908 on registration of any document other than the memorandum or the abstract required to be filed with the registrar by a receiver or manager or the statement required to be sent to the registrar by the liquidator in a winding-up in England.

26. The costs charges and expenses preliminary to and of and incidental to the preparing and obtaining this Act shall be paid as provided in the scheduled agreement and any such costs charges and expenses to be paid by the Joint Board shall be paid out of their common fund.

Costs of Act.

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The SCHEDULE referred to in the foregoing Act.

AN AGREEMENT made the twenty-seventh day of May one thousand nine hundred and sixteen between the CONWAY AND COLWYN BAY JOINT WATER SUPPLY BOARD whose office is at Conway in the county of Carnarvon (hereinafter called "the Board") of the one part and the ALUMINIUM CORPORATION LIMITED whose registered office is at Central House 46 and 47 Finsbury Square in the city of London (hereinafter called "the Corporation") of the other part.

WHEREAS the Board is the owner of land situate between Lake Cowlyd and the River Conway and also of the bed or soil of the Cowlyd Lake :

And whereas the Corporation is the owner of land abutting upon the River Afon Ddu :

Now it is hereby mutually agreed and declared by and between the parties hereto as follows :—

1. The Corporation shall construct in a proper and workmanlike manner an embankment or dam (hereinafter called "the new dam") not less than thirty feet in height at a point within the limits of deviation to be shown on the plans to be deposited in connexion with the Bill hereinafter referred to as shall be agreed between the engineer of the Corporation and the engineer of the Board respectively Provided however that the Corporation shall be at liberty from time to time and at any time (either within the period of three years hereinafter mentioned or after that period) to increase the height of the new dam in such manner (within the height allowed by the intended Act) as they shall decide.

2. The work of constructing the new dam and all necessary or incidental works for the purpose of the scheme to which these presents relate or in connexion therewith shall be commenced within a reasonable time after the passing of an Act of Parliament authorising the same and shall thenceforth be proceeded with with all reasonable despatch and completed in a proper manner to the reasonable satisfaction in all respects of the Board within three years after the passing of the said Act of Parliament In the event however of delay being occasioned by labour or other conditions arising out of or in connexion with the war or through other circumstances or conditions over which the Corporation shall have no control including (but without limiting the generality of this clause) strikes lockouts or

combinations of workmen then and in all or any or either of the said cases the said period of three years shall be extended for such further period as may under all the circumstances be reasonably necessary. The Corporation however shall (so far as it lawfully can or may) be at liberty to lay the foundations of and proceed with the construction of the new dam immediately after the execution of this agreement. A.D. 1916.

3. All the said works shall be carried out by and at the cost of the Corporation (under the supervision and to the reasonable satisfaction of the Board's engineer) in accordance with plans sections working drawings and specifications previously submitted to and approved by the Board. Copies of such plans sections working drawings and specifications shall (before such works are commenced) be submitted by the Corporation to the Board for the Board's approval and within four weeks after the submission thereof the Board shall signify in writing to the Corporation their approval or disapproval thereof or the alterations or amendments required by them therein and in the event of the Board's disapproving such plans sections working drawings or specifications or any of them or requiring any alteration or amendment therein to which the Corporation shall not agree the matter in difference shall be determined by arbitration in manner hereinafter provided. If the Board do not signify in writing their disapproval of the said plans sections working drawings or specifications within the time aforesaid they shall be deemed to have approved the same subject only to such alterations or amendments (if any) therein as they shall have required within the time aforesaid. Should it be found necessary or should the Corporation desire during the continuance of the said works to make any alterations therein or additions thereto the Corporation shall previously submit to the Board for its approval proper plans sections drawings and specifications showing such proposed alterations or additions which shall not be commenced until after such approval has been given by the Board and the provisions hereinbefore contained as to the original plans sections drawings and specifications and the approval thereof and the determination of any matter in difference relating thereto shall apply to the plans sections drawings and specifications of such alterations or additions except that in this event the period of four weeks above mentioned shall be read as two weeks.

4. The approval by the Board or its engineer of any plans sections drawings or specifications submitted to the Board shall not impose responsibility upon the Board for or by reason of any such plans sections drawings or specifications being faulty or defective or otherwise open to objection nor shall any responsibility rest on the Board by reason of any supervision given by the Board as aforesaid.

5. The Corporation shall not (without the previous consent in writing of the Board) interfere with or affect the existing dam or

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6. The new dam when constructed and its incidental works shall be the property of the Board but shall at all times after the completion thereof be maintained by and at the expense of the Corporation and to the reasonable satisfaction of the Board.

7. Subject to the provisions in this agreement contained possession of and control over the said lake (including the said proposed extension thereof) and all works from time to time appurtenant thereto and connected therewith or incidental to the Board's undertaking shall be and continue vested in the Board but the Corporation shall have the management and control of its own outlet hereinafter referred to and shall be at liberty to inspect the Board's works and shall have full powers of ingress egress and regress for the purposes of inspection repairs maintenance supervision and otherwise over the said lake and the works of the Board in connexion therewith and also their own works thereon and over the lands and premises belonging to the Board as the Corporation shall reasonably require including full right and liberty during the continuance of the said works to erect temporary erections and buildings in connexion therewith on the lands of the Board.

8. The Corporation shall at all times effectually indemnify the Board from and against all claims or demands which may be made by any person persons or corporation in connexion with or by reason of the execution of the said works or by reason of any default in regard to the proper maintenance of the said works as aforesaid and also any loss or damage which may arise to the Board its property or works from any negligent default by the Corporation in properly maintaining the new dam or other the works as aforesaid.

9. Notwithstanding anything in the Board's Act of 1908 contained the Corporation will release the Board from its obligation to supply the Corporation with any compensation water and will indemnify the Board against the claims of any other riparian owners along the Afon Ddu to compensation water by the provision of sufficiently increased storage capacity beyond the present capacity of their existing lake wherewith to satisfy any such claims And in the event of any difference arising upon this clause the same shall be referred to arbitration.

10. The Board and the Corporation shall both (after the completion of the new dam and the bringing of the same into use) be entitled to draw the available water in the lake above the level of 1,169 feet

above Ordnance datum (or such other height as shall be agreed and determined as hereinafter provided) for the purposes of their respective undertakings. Provided nevertheless that the Board alone shall be entitled to the whole of the water in the lake below 1,169 feet above Ordnance datum or such other height above Ordnance datum as the engineer of the Board and the engineer of the Corporation shall agree by writing under their hands or in the event of their failing so to agree an arbitrator shall determine to be sufficient to provide the Board with the same quantity and quality of water as is represented by 1,169 feet above Ordnance datum in the present lake and the Corporation shall not take water from the lake if and whenever the level thereof shall fall to 1,169 feet above Ordnance datum or such other height as aforesaid not even for compensation water referred to in clause 9. The Corporation may for the purposes of taking water from the lake in accordance with this agreement construct and maintain an outlet at a point on the new dam in such a position that the lower part of the invert of the pipe shall not be at a lower level than 1,169 feet above Ordnance datum or such other height as aforesaid.

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11. The Corporation shall be at liberty to provide for the supply of water into the said lake from any other watershed provided that the Board are previously satisfied that such other watershed and the gathering grounds connected therewith are free of all human habitation and that the water is pure and suitable for the Board's duties and powers statutory or otherwise and until such satisfaction (which shall not be unreasonably or arbitrarily withheld) has been expressed the water from any other watershed shall not be brought into the said lake by the Corporation and the Corporation shall afford the Board facilities for testing and examining at the expense in all things of the Corporation the grounds from which such water is supplied or intended to be supplied and the water in order to satisfy the Board that the water is pure and of a character suitable for the purposes aforesaid. In the event of its being found subsequently that any watershed from which water shall be so brought into the lake is contaminated or the water therefrom polluted the Corporation shall upon receiving due notice from the Board cut off and cease the supply of such water into the lake the intention of this clause being that once additional water has been introduced into the lake by the Corporation it shall at no time be diverted therefrom except in cases where objection is taken by the Board to any additional supply on the ground of pollution.

12. As part of the work connected with the construction of the new dam the Corporation shall at its own expense clear the land lying between the existing dam and the new dam and also such

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A.D. 1916. — portion of the land adjoining the lake as shall become actually submerged by reason of the erection of the said new dam of peat and heather and any other vegetable growth or deposit which would impair the quality of the water.

13. The Board shall at their own expense have full power and liberty (if it shall think fit so to do) to enlarge the Board's existing lines of pipes and/or to lay other lines of pipes for the purpose of conveying water from the said lake (including the extension thereof) to the constituent districts of the Board existing at the date of this agreement or the area referred to in clause 16 hereof or any extension thereof respectively. The Board hereby undertake and agree not to supply water from the said lake to any new district or area (not being part of the constituent districts of the Board or of the area referred to in clause 16 hereof or any extension thereof respectively) or for the purpose of moving water-wheels or turbines or providing hydraulic power to machines exceeding two-horse power without the consent in writing of the Corporation. The constituent districts hereinbefore mentioned shall be deemed to include the following areas (viz.) Those of the Conway Corporation the Conway Rural District Council including the Glan Conway Rural District Council and the Colwyn Bay and Colwyn Urban District Council.

14. The scheme contemplated by these presents shall be prepared for submission to Parliament and the Board shall promote a Bill in the earliest session of Parliament available for private Bills to authorise such scheme and to confirm this agreement. The Corporation shall give the Board all possible assistance in obtaining or endeavouring to obtain the passing of the said Bill with such modifications (if any) as may be required to be made therein with a view to securing the powers of the Board and the due fulfilment of its statutory or other duties.

15. Should any additional rates or taxes in respect of the said lake and works be payable by the Board by reason of the extension thereof as aforesaid such addition shall be repaid by the Corporation to the Board.

16. For the considerations in this agreement appearing the Board hereby undertake and agree forthwith after the passing of the said Bill to take the necessary steps to lay on a full and continuous supply of water from the said lake to the parish of Dolgarrog and the house known as "Plas Maenan" for the use enjoyment and convenience of the occupiers of shops private houses cottages and other premises there on the same terms and conditions as those on which the Board for the time being supply water in the constituent districts referred to in the said Act.

17. If at any time after commencing the said works the Corporation shall without sufficient excuse make default either in duly proceeding with the same or in completing the same within the time and in the manner aforesaid it shall be lawful for the Board (if it shall think fit so to do) to take over the said work either wholly or partially and either temporarily or until completion of the same as the Board may think right and in any such case the Board shall be entitled to use without charge any plant or machinery of the Corporation which may be on the site of the proposed works and the Corporation will fully and effectually indemnify the Board against any expenses the Board may be put to in taking over and carrying out the said work or any part thereof and in case default shall be made by the Corporation in paying the amount of any such expenses to the Board upon demand the Board shall be entitled to prevent any water being taken or used by the Corporation from the said lake or the extension thereof until such default shall be made good.

18. After the completion of this agreement the Corporation shall pay and discharge all reasonable and proper costs charges and expenses which the Board shall incur in or relating to the negotiations leading up to and the preparation and execution of these presents and of and incidental to the preparation and application for the passing of the said Bill provided that the Corporation shall not be liable under this clause for a sum in excess of two thousand pounds.

19. Neither of the parties hereto will at any time or times do any act or thing to prejudicially or injuriously affect the respective rights and interests of either party under the terms of this agreement and/or the proposed confirmation thereof by Act of Parliament.

20. If any dispute or question shall arise with reference to this agreement or anything herein contained or as to the rights liabilities and duties of either party hereunder or if there be any failure to agree or (save and subject as is hereinbefore explicitly provided) want of approval in relation to any matter in this agreement the same shall be referred to an arbitrator agreed upon between the Board and the Corporation and failing such agreement to be appointed by the Local Government Board and the provisions of the Arbitration Act 1889 or any statutory modification thereof for the time being in force shall apply to such reference.

21. This agreement (other than clause 18 hereof) is conditional upon the same being confirmed by Parliament and is subject to all such alterations as Parliament shall think fit to make therein provided that if in the opinion of either party any material alteration to be made herein by the Committee of either House of Parliament to whom the Bill to confirm the same shall be referred it shall be competent to either party to withdraw from this agreement.

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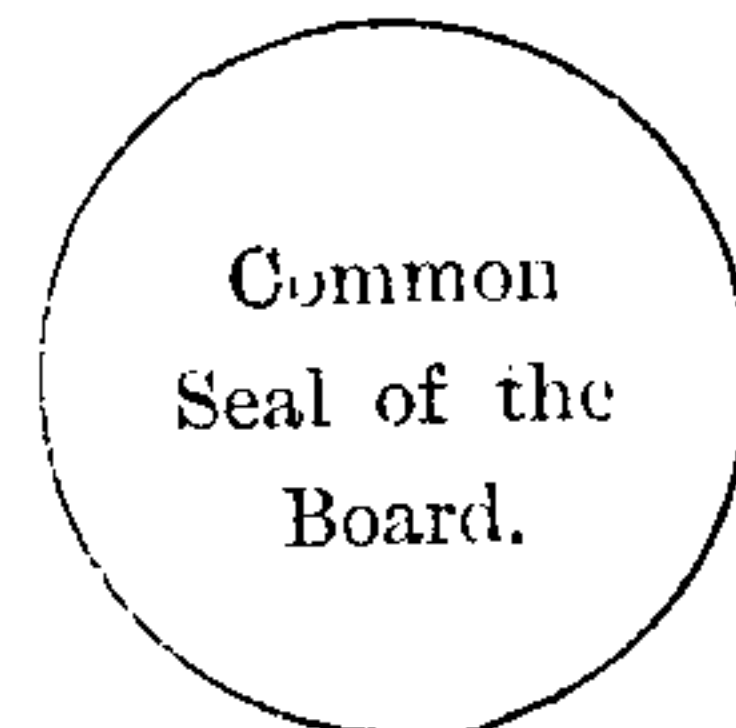
A.D. 1916.
—

In witness whereof the Board and the Corporation have hereunto caused their common seals to be affixed the day and year first above written.

The common seal of the Conway and Colwyn Bay
Joint Water Supply Board was hereto affixed in the
presence of

JAMES STOTT Chairman.

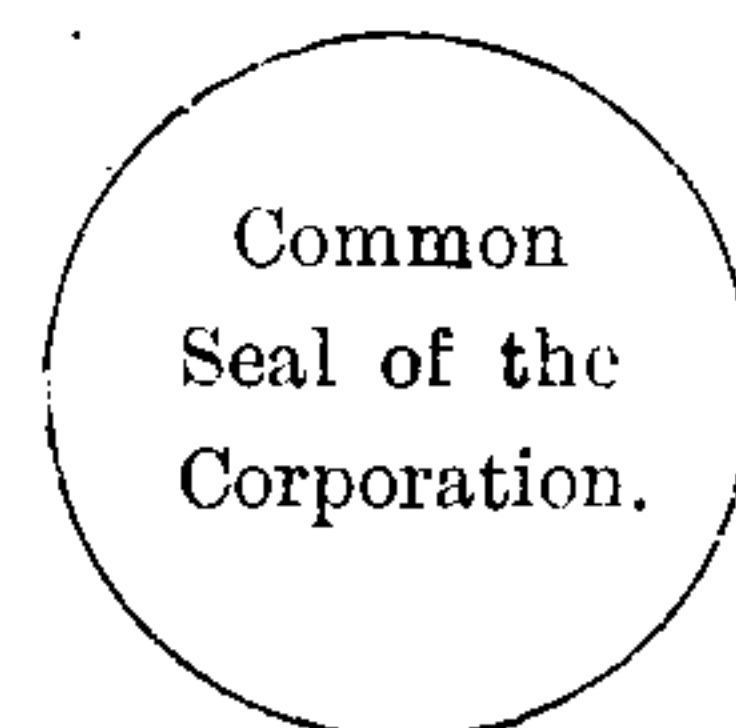
ROBERT JONES Clerk.



The common seal of the Aluminium Corporation }
Limited was hereto affixed in the presence of

REG. TAYLER
HENRY J. JACK } Directors.

J. HUNTER RAMSAY Secretary.



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